

BEFORE THE ARBITRATOR

In the Matter of the Interest Arbitration
Dispute Between

METROPOLITAN ALLIANCE OF POLICE,
CHAPTER #78, ALGONQUIN PATROL OFC

and

VILLAGE OF ALGONQUIN

FMCS Case No. 180306-02

190

ILRB Case No. S-MA-17-262
(Interest Arbitration)

Appearances:

Reimer, Dobrovolny, PC, by Ms. John A. Gaw, on behalf of the Union.

Clark Baird Smith, LLP, by Ms. Roxana M. Underwood, on behalf of the Village.

ARBITRATION AWARD

The above-entitled parties, “Union” and “Village,” engaged in negotiations over a collective bargaining agreement running from May 1, 2018 – April 30, 2022. They reached agreement on all issues except for Wages, Scheduling and Overtime Pay, Vacation Scheduling, and Personal Days.

Pursuant to Section 14 of the Illinois Public Labor Relations Act, herein “Act,” the parties selected Amedeo Greco to serve as the arbitrator and they waived the three-member arbitration panel. A hearing was held on September 14, 2018, in the Village of Algonquin, Illinois, at which time it was transcribed. The parties filed briefs which were received by December 24, 2018.

BACKGROUND

The Union since 1992 has represented for collective bargaining purposes a unit now consisting of about 51 full-time Police Officers (“Officers”) employed by the Village. The most recent agreement ran from May 1, 2013 – April 30, 2017.

The Village has a separate collective bargaining agreement with the Union for civilian personnel consisting of clerks and community services employees, and it also has a contract with International Union of Operating Engineers Local 150 for certain Public Works personnel. Those two bargaining units received across-the-board 2.5% annual wage increases over the life of their current contracts and an additional 2.5% across-the-board wage increases for employees falling below the midpoint of their salary ranges.

The parties have agreed that all previously agreed-to tentative agreements are to be included in the new agreement (Joint Exhibit 5), and that wages are retroactive to May 1, 2017 including for any Officers who have left employment since that time. The parties agree that all issues in dispute are economic.

The Union filed the paperwork for interest arbitration which led to this proceeding.

FINAL OFFERS

The parties have submitted the following Offers:

I WAGES:

A. The Union’s Final Offer provides for straight across-the-board 2.50% wage increases on May 1, 2017; May 1, 2018; May 1, 2019; and May 1, 2020.

B. The Village's Final Offer provides for straight across-the-board 2.25% wage increases on May 1, 2017; May 1, 2018; and May 1, 2019, and a 2.00% wage increase on May 1, 2020.

II **SCHEDULING AND OVERTIME PAY:**

A. The Village's Final Offer proposes the status quo and the language in the expired contract regarding scheduling and overtime pay.

B. The Union's Final Offer proposes:

Section 5.2. Normal Workweek and Workday:

The normal workweek shall average forty (40) hours per week, but in some weeks employees shall work more than forty (40) hours and some weeks less than forty (40) hours. The normal workday shall be eight ¼, (8.25) hours including a thirty (30) minute paid lunch period, subject to emergency work duties.¹

Section 5.3. Overtime Pay:

Officers covered by this Agreement shall be paid one and one-half times their regular rate of pay for hours worked in excess of the eight ¼ (8.25) hours scheduled for the regular shift and for any days that the officer works in excess of the dates scheduled for the regular shift.

III **VACATION SCHEDULING:**

A. The Village's Final Offer proposes the status quo and the language in the expired contract.

B. The Union's Final Offer proposes:

Section 7.3. Scheduling (Vacation):

Vacations shall be scheduled on a year round basis. During the November 1st to December 14th vacation selection timeframe, the officers with the most seniority making a vacation day request that results in a second person off on a shift for one (1) day in conjunction with a five (5) day vacation block will not be denied that request. (RDO's may occur on either side or during the five day minimum vacation day request.) This

¹ All underlined language herein represents proposed new contract language.

vacation day use outside the current time off policy will be limited to six (6) instances per vacation year for the entire bargaining unit. Employees shall select their vacations according to seniority with all vacations chosen by December 15th of each year if seniority is to apply. The Police Chief shall schedule vacations and determine the maximum number of employees who may be on vacation at any one time, taking into account the needs of the Department, employee advance requests, and employee seniority. Vacations may not be taken in increments of less than one (1) full day.

Accrued but unused vacation time, which is not carried over, shall be paid out to the employee at the appropriate rate.

IV **PERSONAL DAYS:**

A. The Village's Final Officer proposes the status quo and the language in the expired contract.

B. The Union's Final Offer proposes:

Each new employee shall receive one personal day on the completion of his or her third month, sixth month, and ninth month of service. Thereafter, regular full-time employees who have completed one (1) full year of employment will received three (3) paid personal days* to be absent from work. These three days must be used by the end of the fiscal year they are provided in. *After your first anniversary date, personal days are awarded at the beginning of every fiscal year (May 1). The use of personal days must be approved by the Chief or his designee. Personal days must be used during the year in which they are earned and shall be paid at the employee's regular rate of pay for eight (8) hours. Unused personal days cannot be carried over from year to year. Any personal days not used in the calendar year will be ~~forfeited~~ paid out at the appropriate rate, unless approval for carry-over of those days is given by the Chief or his designee. Any personal days carried over from the previous year must be utilized within thirty (30) days. The Village may require an employee to utilize unused personal days. In the event of death, any unused personal days shall be paid to the designated beneficiary of the deceased employee. The Village's Final Offer provides:

Each new employee shall receive one personal day on the completion of his or her third month, sixth month, and ninth month of service. Thereafter, regular full-time employees who have completed one (1) full year of employment will received three (3) paid personal days* to be absent from work. These three days must be used by the end of the fiscal year they are provided in. *After your first anniversary date, personal

days are awarded at the beginning of every fiscal year (May 1). The use of personal days must be approved by the Chief or his designee. Personal days must be used during the year in which they are earned and shall be paid at the employee's regular rate of pay for eight (8) hours. Unused personal days cannot be carried over from year to year. Any personal days not used in the calendar year will be forfeited unless approval for carry-over of those days is given by the Chief or his designee. Any personal days carried over from the previous year must be utilized within thirty (30) days. The Village may require an employee to utilize unused personal days. In the event of death, any unused personal days shall be paid to the designated beneficiary of the deceased employee.

DISCUSSION

The statutory criteria in Section 14 (h) of the Act states:

(h) Where there is no agreement between the parties, or where there is an agreement but the parties have begun negotiations or discussions looking to a new agreement or amendment of the existing agreement, and wage rates or other conditions of employment under the proposed new or amended agreement are in dispute, the arbitration panel shall base its findings, opinions and order upon the following factors, as applicable:

- (1) The lawful authority of the employer.
- (2) Stipulations of the parties.
- (3) The interests and welfare of the public and the financial ability of the unit of government to meet those costs.
- (4) Comparison of the wages, hours and conditions of employment of the employees involved in the arbitration proceeding with the wages, hours and conditions of employment of other employees performing similar services and with other employees generally:
 - (A) In public employment in comparable communities.
 - (B) In private employment in comparable communities.
- (5) The average consumer prices for goods and services, commonly known as the cost of living.
- (6) The overall compensation presently received by the employees, including direct wage compensation, vacations, holidays and other excused time, insurance and pensions, medical and hospitalization benefits, the continuity and stability of employment and all other benefits received.

(7) Changes in any of the foregoing circumstances during the pendency of the arbitration proceeding.

(8) Such other factors, not confined to the foregoing, which are normally or traditionally taken into consideration in the determination of wages, hours and conditions of employment through voluntary collective bargaining, mediation, fact-finding, arbitration or otherwise between the parties, in the public service or in private employment.

There are no issues relating to Factors (1), (2), (6), (7) and (8).

Turning to Factor 3, the interests and welfare of the public are served by either parties' Final Offer, and the Village has the financial ability to meet those costs because it is not making an inability to pay argument. The Village nevertheless has finite dollars to spend and it is rightly concerned over needlessly overpaying when there is no need to do so.

As for Factor 5 and the CPI, the Village's wage proposal over four years totals 8.75% versus the 10% the Union seeks. The Village's wage proposal offer for 2017 and 2018 totaled 4.5% versus the Union's wage proposal of 5%. In addition, about 1/3 of the bargaining unit will receive step increases which raises their total wages increases to 3.17% in year 1; 3.22% in year 2; 3.25% in year 3; and 3/04% in year 4 of the agreement. (Village Exhibit 15)

The Naperville-Elgin CPI for 2017 and 2018 totaled 4.10% (Village Exhibits 18 C, D), thereby showing that the Village's wage offer for those two years is closer to that CPI.

As for 2019 and 2020, Arbitrator Edwin H. Benn has stated in another case that the out years of a contract can best be estimated by the projections of the Federal Reserve Bank of Philadelphia's Survey of Professional Forecasters:²

He explained:

² See Cook County Sheriff/County of Cook, Case No. L-13-005-008 (Benn, 2016).

Although not always completely accurate, the forecasters are the best tool interest arbitrators have to look at future years in collective bargaining agreements for examination of the cost of living factor – and the Survey of Professional Forecasters remains one of the most respected.

The projected CPI in the Survey is 2.30% for both years. (Village Exhibit 18 D), thereby showing that the Village’s wage proposal for those years is closer to the CPI.

The Union claims that the CPI “should be given very little weight “because the parties have never used CPI and, instead, have used above market increases as the standard.”

I disagree. The CPI is one of the most important Factors in determining wages and there is no basis for not considering it here.

The CPI therefore supports the Village’s wage proposal.

As for Factor (4) relating to comparability, the parties disagree over what external comparable communities should be used.

The Village maintains that the following external comparables used by Arbitrator Edwin H. Benn in the prior 1995 interest arbitration proceeding between the parties should be used:³

Barrington	Lake Zurich
Batavia	McHenry
Belvidere	Sycamore
Cary	Woodstock
Lake In The Hills	

The Union used 7 counties in the Chicago metro area and in the northeast corner of Illinois and then pared that down to the following external comparables:

³ Village of Algonquin, Illinois and Metropolitan Alliance of Police, Case No. S-MA-95-85 (Benn, May 1, 1966), (herein “Benn Award”) (Village Exhibit 10, A; Union Exhibit 9). That was the only time the parties have gone to interest arbitration for this unit.

Addison
Bensenville
Darien
Glendale-Heights
McHenry
Mokena
Morton-Grove
Mundelein

Oswego
Rolling Meadows
Romeoville
Village Park
Westmont
Wheeling
Woodridge

McHenry thus is included in both parties' comparables.

The Village maintains that only the external comparables in the Benn Award should be used because "the Union cannot demonstrate changed circumstances and because the Union's comparability analysis is flawed." It thus argues that the Union's analysis does not take into account current population data showing that the majority of the Village's comparables are within the same +/- 40% range using the Union's methodology, thereby not demonstrating changed circumstances.

It also states that at least five of the prior comparables are comparable employing the Union's own +/-40% methodology for EAV per capita, thereby "further demonstrating that no changed circumstances exist here." The Village adds that its Sales Tax Revenue Per Capita is also comparable under that methodology. The Village further states that the Union has failed to produce any data regarding General Fund Revenues even though it was used in the Benn arbitration and even though "the Union stressed at the hearing the importance of looking at how much money a municipality has to spend per citizen on its services."

The Union states its external comparables should be used because "they are the most current and most accurate", and that the Village's external comparables must be rejected because they are based upon the outdated comparables in the 1995 Benn Award. It also states that the 1995 data is "hearsay" and cannot be relied upon; that "The Union was denied an opportunity to

cross-examine, or even ask questions where the source data came from;” and that “The Employer’s group of comparables are grossly inaccurate because of the significant time passage, and grossly changed circumstances.”

The Union adds that equalized assessed evaluations (EAV), sales tax revenue, per capital EAV; and per capital sales tax revenue are the proper factors to consider here, and that the Village “did no analysis” and did not “consider current data, or do any personal investigation into this matter.” It further states “mileage is not the proper factor for the Chicago metro area”; that the Union was not required to bargain over its proposed external comparables; and that the Village did not present its external comparables until the day of the instant hearing. The Union adds that the “methodological process” it followed in preparing its external comparables (Union Exhibits 18-33) should be adopted because its “data sources was the Illinois Comptroller’s Office.”

The Union also points out that the Village’s population has risen from 14, 737 in 1995 to 30,046 in 2017 (Union Exhibits 9, p. 192 and 18, p. 272); that its Equalized Assessed Valuation of property has more than tripled (Id.); and that its sales tax revenue has increased more than seven-fold (Union Exhibit 9, p. 192; Union Exhibit 18, p. 279).

Ideally, parties engaged in negotiations that can lead to an interest arbitration proceedings should discuss as soon as possible what external comparables should be used because that helps define the contours of their bargain.

That did not happen here. The Union did not present its external comparables until two days before the start of the instant hearing and the Village did not present its comparables until the day of the hearing. While both parties blame the other side for that situation, there is no point in now trying to ascertain who was most at fault.

The Benn Award is the starting point in determining the external comparables here.

Both parties there agreed upon five (5) comparables, i.e., Cary, Lake In The Hills, Lake Zurich, McHenry, and Woodstock (Benn Award, pp. 4-5). Arbitrator Benn found that Batavia and Belvidere also are comparables because they “fall within the ranges formed by the agreed upon comparables in 8 of the 11 categories I have been asked to consider,” and that Sycamore was a comparable because it “falls within the range formed by agreed upon comparables in 7 of the 11 categories” (Id., pp. 20-21). The Union then wanted to include Barrington and Batavia in its comparables (Id., p. 5). It now want to exclude them.

Arbitrator Benn relied upon the mileage distances between these comparables and the Village (Id., p. 9). He stated: “I shall, however, include the geographic distance from Algonquin as one of the several factors for consideration.” (Id., p. 7)

The approximate mileage between the Village of Algonquin and each of the aforementioned communities is as follows:⁴

<u>Village Comparables</u>		<u>Union Comparables</u>	
Barrington	7	Addison	21
Batavia	22	Bensenville	23
Belvidere	28	Darien	33
Cary	4	Glendale Heights	20
Lake in the Hills	5	McHenry	13
Lake Zurich	13	Mokena	48
McHenry	13	Morton Grove	27
Sycamore	23	Mundelein	15
Woodstock	14	Oswego	35
		Rolling Meadows	15
		Romeoville	37
		Villa Park	25
		Westmont	30
		Wheeling	18
		Woodridge	31

⁴ Each party has submitted slightly different mileage information and the distances below represent approximations.

The Union argues “mileage is not the proper factor for the Chicago metro area.” The Union in the Benn proceeding, however, argued that it selected “comparable communities and stressed particularly the close proximity of the Union’s comparables to the Village of Algonquin” (*Id.*, p. 5, Note 6). The Union’s position here therefore is opposite from what it argued before Arbitrator Benn.

In agreement with Arbitrator Benn, I find that mileage is an important factor to consider.⁵

Mileage distances favor the Village’s proposal because Cary, Lake In The Hills, and Barrington are only 4, 5, and 7 miles from the Village, and because McHenry, Lake Zurich, and Woodstock are 13, 13, and 14 miles away. By contrast, 6 of the Union’s 15 comparables are 30 or more miles from the Village, with Mokena being 48 miles away.

There is no point in using an external comparable 48 miles away while excluding comparables which are only 4, 5, 7, 13, 13, and 14 miles away from the Village.

This mileage factor therefore supports the Village.

In addition to mileage distance, Arbitrator Benn used data for comparability that included population, department size, number of Patrol Officers, total number of employees, median income, sales tax revenue, sales tax revenue per person, EAV, EAV Pers, and total General Fund Revenue.

The Union’s 2017 data covers population, EAV, Total Sales Tax Revenues, Per Capita. EAV, and Per Capita total sales tax revenue. The Union therefore does not address the other data used by Arbitrator Benn regarding department size, number of Patrol Officers and employees, median income, and total General Funds.

⁵ See Village of Oak Brook, Case No. S-MA-96-242 (Kossoff, 1998) where Arbitrator Kossoff stated: “proximity is one of the most frequently used criteria in deciding comparability issues.”

It is well-established that the party seeking to change historical comparables has the burden of clearly proving that a change is warranted. See City of Rockford, Case No. S-MA-12-108 (Goldstein, 2013), and City of Rockford, S-MA-11-09 (Perkovich), where attempts to change historical comparables were rejected.

Furthermore, “Bargaining stability is maintained by crediting decisions regarding comparable communities reached in prior interest arbitrations,”⁶ and “Interest arbitration is designed to be a conservative process and promote stability in the labor-management relationship by retaining established comparables.”⁷

In order to maintain that stability, prior interest arbitration awards must be accepted at face value in subsequent proceedings unless they are glaring wrong which is not the case here.

There thus is no merit to the Union’s claims that the Benn Award contains hearsay (which is true in almost all interest arbitration awards) and that the Union was entitled to inquire where the Benn data came from.

The Union points out that there have been significant changes in the Benn data between 1995 and 2017.

But, such changes are undoubtedly true of all other possible external comparables in the State of Illinois when their 1995 data is compared with their 2017 data. Change alone therefore does not automatically warrant rejecting prior comparables especially where, as here, the parties previously agreed to seven of them. There thus is strong presumption that those comparables are still valid unless there is clear and convincing proof that the previous methodology and/or the data no longer can be used.

⁶ See Case No. S-MA-15-031, p. 8 (Dichter, 2017).

⁷ See City of Countryside and FOP Labor Council, Case No. S-MA-10-291-292 (Clause, 2013).

Here, the Union has failed to establish why it has not addressed the Benn data relating to department size, number of employees, median income, and General Funds Revenues. Its data therefore is incomplete.

The Village also points out that the current data for its comparables regarding population and EAV per capita fall within the same +/- 40% range used by the Union, and that the majority of its comparables would be included under the Union's methodology. The Village also points out that three of its comparables would be comparable under the Union's methodology regarding Sales Tax Revenue.

This issue thus turns upon the need for stability and whether the Union has met its burden of proving that the Benn comparables are no longer valid.

The Union has produced considerable evidence showing that some changes have occurred for the Village since 1995.

At the same time, however, the mileage distances between Algonquin and the prior comparables have remained the same. In addition, the current population data falls within the same +/-40% range using the Union's comparability data, thereby showing no changed circumstances regarding mileage distances. The same is true for EAV per capita since at least five of the prior comparables are comparable using the Union's methodology. In addition, three of the prior comparables regarding Tax Revenue Per Capita are comparable under the Union's methodology.

This data shows that the prior comparables are still viable regarding a number of metrics.

When that is coupled with the need for stability, I find that the Union has failed to meet its burden of proving that changed circumstances warrant discarding the Benn comparables and that they should be used here.

A. WAGES

The total monetary difference between the parties' wage offers over four years is about \$88,000 (Village Exhibit Tab 12, p. 2).

The Village states its wage proposal should be selected because while officers with five years' service are lower than the comparables, they "lead the parade at years 10, 15, 20, 25 and 30." The Village adds that when step increases are included, the average annual wage increases are 3.17% in the first year; 3.22% in the second year; 3.25% in the third year; and 3.04% in the fourth year, and that such increases outpace the cost of living.

The Union states "One of the strongest arguments for the Union's wage increase was made by the Employer and posted on the Algonquin web page" when it stated that officers would receive wage increases of 2.50% for each year of a four year contract. (Union Exhibit 70) The Union adds that Illinois State law requires the posting of certain salaries after a budget has been approved, and that the Village's budget must have been passed before that posting was made. The Union also argues "This certainly gives the appearance that the Employer had originally planned to give the Union a 2.5% increase" even though, in its words, "why things changed is unknown".

Village Manager Tim Schlenger, however, testified that Exhibit 70 "is not a policy document. It is not a collective bargaining agreement. It's not something that would go in front of our board." He added "It's illustrative" and was issued to keep "us in compliance with transparency and that it was not anything that is going to be administered by me as a matter of policy", and that the Village Board before the web posting never discussed or approved those wage increases.

His testimony that the Village Board before the posting never discussed or approved those wage increases was undisputed. The posting thus was **not** a binding commitment and the Village therefore could offer different wage increases in its Final Offer on wages.

As for the external comparables regarding wages, the Village ranks number one in 2017, 2018, and 2019. (Village Exhibit 17B, p. 3; Village Exhibit 10 C) There thus is no need for catch-up.

As for the internal comparables, those two bargaining units received across-the-board wage increases of 2.50% for each year of their four year contracts, which is what the Union is seeking here. Some of those employees also received another 2.50% for each year if they fell below the midway point of their salary range, thereby bringing their total annual increases to 5% per year.

The Village states that the internal comparables are “not an appropriate consideration” because they have a totally different pay plan.

These internal comparables cannot be given much weight because they have totally different pay plans and because wage comparability for police units mainly turns on outside comparable police units rather than on internal units.

Since the CPI and external comparables favor the Village’s wage proposal it is more reasonable.

B. SCHEDULING AND OVERTIME PAY

The current 8.25 shift is a five day on two day off schedule followed by a four day on and two day off schedule. In that way officers rotate their day off every two weeks.

The Village since January 1, 2016 has agreed on a trial basis to try 8.25 hour shifts for Patrol Officers. About one quarter of the other Officers are non-Patrol Officers who work eight

hours and are detectives or are assigned to specialty assignments. The parties' past contracts provided for eight hour shifts even though the parties for years earlier agreed to 8 ½ hour shifts on a trial basis.

Each party argues that the status quo favors its proposal.⁸ This matter, however, is unusual because the status quo consists of the current 8.25 hour shifts and the current contract language providing for eight hour shifts. Since both proposals to some extent reflect the status quo, I find that neither party had to offer a quid pro quo.

The Village wants to maintain the current contract language providing for 8 hour shifts, but is willing to keep the existing current 8.25 hour schedule for the immediate future. The Village also states the Union's proposal removes the Chief's discretion to approve carryover; eliminates the five (5) day maximum carryover; eliminates the specific time period in which carryover could be taken; and eliminates the requirement that carryover must be used at all.

In support of its proposal the Union points to Officer Brandon Pumps testimony about the difficulty in taking vacation time because of reduced manpower in the Department. Referring to Officers who now work 8 hour days, the Union states "We have not proposed something to change that" and that, "the experiment [of 8.25 hours days] never applied to individuals such as detectives and people in specially assignments." The Union also states that it "is seeking to maintain the current 8.25 hour schedule that it has been working under for the last three years" and that, "the Union is only seeking to have the contract reflect the actual agreement between the

⁸ The Union argues that "the burden lies on the employer because the Union is proposing the status quo" and because Illinois courts have held "the status quo is defined as the last actual, peaceable uncontested status which preceded the controversy, quoting Bd. of Ed. of Springfield Pub. Sch. Dist. No. 186 v. Springfield Ed. Assn., 47 Ill. App. 3d 193, 196 (4th Dist. 1977). Here, though, there are **two** unconsted facts – i.e., the contract language and the current practice.

parties”.⁹ The Union states the parties engaged in a quid pro quo when they agreed to the 8.25 shifts the Union wanted in exchange for the holiday force offs the Village wanted, but asserts that understanding no longer will be valid if its 8.25 shift contract proposal is adopted.

The Union further states that the parties previously negotiated over this issue as shown by a January 15, 2016 e-mail from Chief John Bucci (Union Exhibit 12) which stated in pertinent part:

. . .

I do request that since you had a union vote in favor of maintaining the 8.25 hour day and forfeiting the right to put in for overtime for the .25 hour – beyond the 8 hour work day – and the agreement for working 8 hours on a Holiday and not submitting for double time for the 15 minutes (unless working a case/call), send a reply and acknowledge that this agreement is in place as of January 1, 2016 for a calendar year.

. . .

No side letter to that effect was ever signed. Nevertheless, the parties have agreed to operate under that basis from January 1, 2016 to the present.

Police Chief Bucci testified that the current eight hour shift in the agreement is needed because “there is always changes in the PD and we need to have the flexibility to move back. . . to eight hour shifts, and because they “give by far the most manpower of any statistically;” He also stated that flexibility is needed to meet the Village’s changing manpower needs; that the Village agreed to the current 8.25 schedule on the explicit understanding that the Village has the right to change it because of “Unknown” circumstances; and that bargaining unit employees over the years have wanted different shift hours.

⁹ Union Brief, pp 27-28.

He added that eight hour shifts represent the best opportunities for having time off; that he never has denied vacation carry over; that no officers have lost their vacations after they have been carried over; and, that he never has received any requests from officers to carry over their personal days. He also stated he never told an officer he would be suspended for not using his benefit time and that he, instead, almost had “to pull his arm to use his benefits time”.

The Village points out that only one external comparable (Lake Zurich) provides for 8.25 hour shifts; that Barrington and Woodstock have trial work schedules; and that the Police Chiefs in Barrington, Cary, Lake Zurich, and McHenry have the discretion to change patrol shifts.

But only Sycamore has eight hour shifts for its Patrol Officers. Hence, there are as many external comparables which have 8.25 hour shifts (Lake Zurich) and which has 8 hour shifts (Sycamore).

Chief Bucci has expressed legitimate concerns over why the eight hour contract language may be needed in the future to maintain maximum flexibility in scheduling manpower.

That need, though, has been met since January 1, 2016 when both parties agreed to 8.25 hour shifts for Patrol Officers, as there is no evidence that those shifts have posed any real management problems. Absent such evidence, there is no proven need to change the 8.25 hour shifts. In addition, employees over the course of a contract have the right to know what their shifts will be so they can plan their time off ahead of time. That can only be done here by maintaining the current practice.

The Union states it only wants to maintain the status quo 8.25 shifts and the current practice for Patrol Officers, and that changing the contract language to 8.25 hour shifts will not in any way change the eight hour shifts that others currently work.

I am relying on that representation in selecting the Union’s proposal.

Given this reliance, the new 8.25 hour shift language in the agreement therefore **only** covers Patrol Officers and must be applied in that fashion.¹⁰ Accordingly, the Union and bargaining unit employees are estopped from grieving and claiming that said language covers anyone other than Patrol Officers. Furthermore, Patrol Officers working 8.25 hour shifts are to receive the same overtime and benefits they have been receiving since 2016 because that is the status quo the parties have agreed to.

The Union states the parties' prior understanding regarding force offs is no longer valid if its proposal is adopted.

I find that **all** of the parties' oral understandings must be honored and that the current practice regarding holiday force offs must be followed as a binding past practice because holiday force offs have occurred since 2008.

The Village states that if the Union's proposal is selected "the Union will likely argue they are entitled to double time on holidays for all hours worked over 8 hours. . ."

Any such claim must be rejected. I am accepting the Union's proposal **only** because that represents the status quo. All other parts of the current status quo regarding wages and overtime are to remain the same regardless of what other parts of the agreement provide. The Union thus will not receive any enhanced monies and or benefits on holidays for which it has not bargained.

Turning to overtime pay under Section 5.3, the Union wants to change the language in the expired contract which states that overtime pay must be paid after 8 hours in a workday to paying overtime after 8 ¼ hours.

¹⁰ In order to avoid any possible confusion, the parties may want to consider amending the agreement to reflect that non-rotating officers work eight hour shifts.

Non-rotating officers now receive overtime pay after 8 hours. The Union's proposal would require them to work more than 8¼ hours before they can receive overtime pay which is hardly fair. In addition, Patrol Officers now working 8¼ hours already receive overtime pay for working over 8 ¼ hours.

I therefore adopt the Village's proposal because there is no need for this change.

C. VACATION

Under the Union's proposal the Village must carryover vacation time for the following year and payout that time if it is not used.

The Village wants to maintain the status quo and states "The Union cannot prove a need to change the status quo", and that external comparability support its proposal because only two of the nine comparables provide for annual payouts for unused vacations (Village Exhibits 10(C) and 32). It also states "nothing would stop an employee from carrying over an unlimited amount of vacation time from year to year, and then, upon separation, seeking a payout of all the unused, carried over vacation time at the officer's then rate of pay." It adds that the Union's proposal removes the Chief's discretion to approve vacation carryover; eliminates the five (5) day maximum carryover; eliminates the specific time period in which carryover could be taken; and eliminates the requirement that carryover must be used at all.

The Union argues that the Village's manpower cutbacks have resulted in cutting eight full-time positions, thereby making it "more and more difficult for an officer to use their benefit time." The Union also claims that its proposal is needed because Chief Bucci threatened to suspend an officer for not using his benefit time.¹¹ The external comparables support the

¹¹ Chief Bucci denied ever threatening the officer involved who did not testify. Absent that direct evidence, it is impossible to determine what Chief Bucci said.

Village's proposal because six (6) of them do not provide for a vacation payout. (Village Exhibits 32; 10 C) Another two (Belvidere and McHenry) provide for it only if carryover is denied by the City Council or the Chief authorizes a carryover or a buyback or a combination of the two. Lake Zurich provides for limited annual buyback for certain employees.

It is well established that the "party seeking the change must show that the existing condition is broken and in need of change."¹²

The Union, however, has not cited one instance of where an officer was not permitted to carryover vacation time. It similarly has failed to cite one instance of where an officer was not allowed to use such carried over vacation time in the following year. The Union therefore has failed to meet its burden of proving there is a need for change.

Accordingly, I select the Village's Vacation proposal.

D. PERSONAL DAYS

The Village's Final Offer proposes the status quo and the language in the expired contract which allows personal days to be carried over for 30 days.

The Union makes the same argument it makes for its vacation proposal i.e., that the Department's reduced manpower has made it more difficult to use personal days.

But again, the Union has failed to cite one instance of where any officer has forfeited personal days and it therefore has failed to meet its burden of proving that this change is needed.

I therefore select the Village's proposal regarding Personal Days.

CONCLUSION

Based upon all of the above,

¹² See City of Elgin, Case No. S-MA-13-010, p. 32 (Grenig, 2012).

1. The Village's Final Offer regarding Wages is selected and shall be incorporated in the agreement.
2. The Union's Final Offer regarding Scheduling and Section 5.2 is selected and shall be incorporated in the agreement.
3. The Village's Final Offer regarding Overtime Pay and Section 5.3 is selected and shall be incorporated in the agreement.
4. The Village's Final Offer regarding Vacations is selected and shall be incorporated in the agreement.
5. The Village's Final Offer regarding Personal Days is selected and shall be incorporated in the agreement
6. All of the parties' tentative agreements shall be incorporated in the agreement.
7. Pursuant to the parties' request I shall retain jurisdiction for thirty (30) days and I shall automatically extend it if necessary.

Dated: March 5, 2019

Amedeo Greco /s/

Amedeo Greco, Arbitrator